SHIELDS PROPERTY SERVICES

SHIELDS PROPERTY SERVICES — SERVICE LIABILITY WAIVER & ACKNOWLEDGEMENT

Residential Snow Clearing • Transcona, Winnipeg, Manitoba

Please read this document carefully. By signing below, the client acknowledges and agrees to the terms set out in this waiver in connection with snow clearing services provided by Shields Property Services (the "Company") at the property address listed below.

1. SCOPE OF SERVICE

The Company provides residential snow removal for driveways and walkways at the client's property. Service is provided within 12 hours after the end of a qualifying snowfall, in accordance with the trigger depth of the client's selected plan.

> **Important:** This service covers snow removal only. Ice scraping is expressly excluded from all plans and services.

2. OPTIONAL COMPLIMENTARY VEHICLE SNOW BRUSHING

Vehicle snow brushing is an optional, complimentary courtesy service. It is **not** a standard inclusion in any plan. Where the client explicitly requests it, the Company will brush loose snow from up to two (2) vehicles parked in the driveway at the time of the visit, using soft-bristle brushes. The client acknowledges that this courtesy is provided at the client's request and that the Company is not responsible for pre-existing vehicle conditions, including scratches, chips, cracks, or wear that may become visible once snow is removed.

3. CANADIAN WINTER CONDITIONS

The client acknowledges that Winnipeg winter conditions include extreme cold, freeze-thaw cycles, ice formation, blowing snow, and unpredictable snowfall amounts and timing. Despite reasonable care, snow clearing cannot eliminate all snow, ice, or slippery conditions. The Company cannot guarantee ice-free, dry, or completely clear surfaces at any time, and refreeze may occur shortly after a visit.

4. LIMITATION OF LIABILITY

The Company will be liable for damages **only in instances of proven gross negligence** on the part of the Company. To the fullest extent permitted by law, the Company is not liable for:

- Pre-existing damage or conditions to driveways, walkways, vehicles, structures, landscaping, or other property;
- Damage caused by hidden or obscured obstacles, including objects buried under snow or ice;
- Normal operational marks from snow clearing equipment used with reasonable care;
- Personal injury, property damage, or loss arising from ice, refreeze, packed snow, or other winter conditions; or
- Damage arising from the optional vehicle snow brushing described in Section 2, except in instances of proven gross negligence.

The client is responsible for moving vehicles and personal property as needed, marking or disclosing hidden obstacles, and exercising caution on all cleared and uncleared surfaces during winter conditions.

5. CLIENT ACKNOWLEDGEMENT & SIGNATURE

By signing below, I confirm that I have read and understood this waiver, including the exclusion of ice scraping, the optional nature of vehicle snow brushing, and the limitation of liability to instances of proven gross negligence. I agree to these terms for services provided at the property address below.

CLIENT NAME (PRINT) _____

DATE _____

CLIENT SIGNATURE _____

PHONE / EMAIL (OPTIONAL) _____

PROPERTY ADDRESS _____

Signed during the in-person consultation visit. A copy of this signed waiver will be provided to the client on request. Shields Property Services recommends clients seek independent legal advice if they have questions about this waiver.